Nitin Jain vs State Of Nct Of Delhi Through Sho Eow on 29 August, 2025

$~1

* IN THE HIGH COURT OF DELHI AT NEW DELHI

\+ BAIL APPLN. 2166/2024

NITIN JAIN

Through: Mr
Mr

versus

STATE OF NCT OF DELHI THROUGH SHO EOW

Through: Mr
St
Th

CORAM:
HON'BLE MR. JUSTICE ARUN MONGA

ORDER

% 29.08.2025

1. The applicant, having remained under incarceration since 20.09.2022, (almost 3 years-short by few days), seeks bail during pendency of the trial in criminal proceedings arising out of FIR No. 54/2021 dated 24.03.2021 for alleged offence under Sections 406,420,467,468,471,120B of the IPC and registered at Police Station Police Station Economic Offences Wing.

2. Briefly speaking, per FIR, the case set up by the Complainant /son authorized by his father (now deceased) is that a multi-layered conspiracy by the accused was hatched to defraud his father, then alive, of over Rs. 10 crores through systematic deception over approximately four years. 2.1 The accused allegedly enticed the complainants through fake cheques and forged government letters promising windfall gains, misused government names and documents, and used these promises to extract This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/08/2025 at 23:43:57 payments for property, taxes, levies, and licenses without providing receipts or title documents. They pressured Complainants to meet fictitious deadlines, exploiting his age, reduced mobility, lack of technical knowledge, and trust in them. Over time, Accused No. 1 manipulated Complainants into making repeated payments to various projects, particularly the Trinity Project, extracting amounts ranging from Rs. 50,000 to Rs. 10 lakhs per transaction. Despite repeated assurances and weekly meetings, the complainant eventually realized that he had been defrauded after exhausting his bank accounts, selling shares, and incurring debts. All demands for payments were made via calls and SMS to Complainant No.1's mobile. 2.2 Accused No. 1, sole proprietor of Adinath Associates, is a registered agent of Accused No. 3, Raheja Developers Limited. Accused No. 2, his wife, is alleged to

have participated in issuing fraudulent cheques. Accused No. 3 is a prominent real estate developer in Delhi NCR, and Accused No. 1 acted as its "Channel Partner," representing and marketing its projects. The accused used newspaper advertisements and personal assurances to gain Complainants' trust. The complainants were induced to believe that units purchased in the Sampada Project could be sold at substantial profits, which were then reinvested in the Trinity Project through the accused. The accused allegedly forged signatures of officials from the Reserve Bank of India and Haryana Real Estate Regulatory Authority (H-RERA) and impersonated senior officials to maintain the illusion of legitimacy. 2.3 The accused introduced false buyers for the Sampada Unit, issued multiple cheques that bounced, and provided fraudulent letters claiming RBI and HUDA refunds. For instance, cheques issued in November 2017 for Rs. 4.75 crores and subsequent cheques from 2018 were dishonoured, indicating This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/08/2025 at 23:43:57 deliberate intent to deceive. The accused also claimed H-RERA refunds were due and required the complainant to make "processing fee" payments, providing forged letters and cheques signed as H-RERA officials. All cheques facilitated through the complainants were dishonoured, highlighting the systematic nature of the fraud.

2.4 Regarding the Trinity Project, the accused again lured Complainants with promises of high returns and development input, resulting in payments of Rs. 75,20,000 directly to Accused No. 3 and approximately Rs. 6,91,83,150 to Accused No. 1. Despite repeated demands, the complainants did not receive proper receipts, property buyer agreements, or refunds. The accused consistently misrepresented the status of projects, payments, and refunds, employing a sophisticated network of forged documents, cheques, and impersonators to perpetuate the fraud.

3. In the aforesaid backdrop, I have heard the rival contentions and perused the case file.

4. Learned counsel for the applicant would argue on lines of grounds pleaded in the petition inter alia urging as below:-

> 4.1 That the dispute between the parties is essentially civil in nature. The Complainant, with a mala fide intent to pressurize the Applicant, has given it a criminal colour by invoking penal provisions.
>
> 4.2 That no offence under Section 420 IPC is made out as there is no dishonest or fraudulent inducement on the part of the applicant. The sine qua non for constituting cheating dishonest intention at the inception is wholly absent in this case.
>
> 4.3 That the applicant was merely an authorized channel partner of Raheja Builders and was not the actual beneficiary of the transaction in This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/08/2025 at 23:43:57 question. The investments were made directly by the father of the Complainant in projects of Raheja Builders, even prior to any involvement of the Applicant.

4.4 That the investigation has been conducted in a biased manner and reflects gross misuse of statutory powers by the investigating agency. However, the charge-sheet has already been filed and investigation is complete. Hence, no further custodial interrogation of the applicant is required.

4.5 That all the evidence in the present case is documentary in nature. Therefore, there is no likelihood of tampering with evidence or influencing witnesses by the applicant.

4.6 That the applicant is the sole breadwinner of his family. His aged parents are suffering from serious ailments, particularly his father who has been diagnosed with brain-related diseases requiring urgent medical attention. His continued detention would cause irreparable hardship to his family.

4.7 That the applicant/accused is a law-abiding citizen of this country with clean antecedents. He has never been previously convicted or challaned in any other case, which reflects his bona fide conduct and deep roots in society.

4.8 That the applicant has been falsely implicated in the present case. The allegations levelled by the prosecution are fabricated, exaggerated, and do not reflect the true facts. In fact, no such incident took place as alleged. 4.9 That the present FIR suffers from substantial delay in lodging, which raises serious doubts about its veracity. Such unexplained delay is fatal to the prosecution case and reflects an afterthought designed to harass the This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/08/2025 at 23:43:57 Applicant.

4.10 That is a settled proposition that an accused is presumed innocent until proven guilty. Keeping the applicant incarcerated for an indefinite period would defeat this principle of criminal jurisprudence. 4.11 That the trial in the present matter is still at a nascent stage, and charges are yet to be framed. Given the pendency of cases, the trial is likely to take a considerable time to conclude. In such circumstances, continued custody of the applicant would serve no purpose.

5. The learned APP for the State and complainants are present in person, and they strongly oppose the accused's application for bail. They contend that the accused poses a significant risk to the fairness of the trial proceedings. There is an apprehension that if released on bail, the accused may influence or tamper with witnesses and evidence.

5.1 Furthermore, there is a serious risk that the accused may flee the jurisdiction and evade trial. The accused may also repeat the offenses, given the nature of modus operandi. Therefore, the bail

application be dismissed.

6. I have heard the submissions of both sides and am of the considered view that the applicant deserves to be released on bail during the pendency of the trial. The applicant has already remained in custody for 2 years, 11 months and 9 days, and the trial is moving at a snail's pace. This prolonged pre-trial detention, coupled with the slow progress of proceedings, are contributory factors in favour of granting bail.

7. As regards the apprehension of tampering with evidence, it is pertinent to note that the material evidence has already been seized and is securely in the custody of the prosecution, rendering such apprehension illusory. One of the primary objects of bail is merely to secure the presence This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/08/2025 at 23:43:57 of the accused during trial. The applicant has been in custody since 20.09.2022. There is nothing on record to suggest that he would abscond, interfere with evidence, or influence witnesses. He has deep roots in society and no criminal antecedents and hence, not a flight risk.

8. The applicant/accused is the sole breadwinner of his family and has the additional responsibility of caring for his elderly, ailing parents. Specifically, his father has been diagnosed with a serious brain-related illness, and any delay or lack of proper treatment could prove fatal.

9. As an upshot and taking wholesome view of the matter, the applicant is directed to be released on bail on furnishing of bail bond and surety to the satisfaction of the learned Trial Judge/Duty Judge as the case may be and subject to the usual conditions to be imposed by the learned trial Judge/Duty Judge.

10. Nothing observed herein above shall amount to an expression on the merits of the case and shall not have a bearing on the trial of the case as the same is only for the purpose of the disposing of the present bail application.

11. Accordingly, the bail application stands disposed of.

ARUN MONGA, J AUGUST 29, 2025 dy This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/08/2025 at 23:43:57